

Chandrakant vs Hansaben on 18 March, 2010

Author: M.R. Shah

Bench: M.R. Shah

Gujarat High Court Case Information System

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SA/206/2009 3/ 4 JUDGMENT

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

SECOND
APPEAL No. 206 of 2009

With

CIVIL
APPLICATION No. 8443 of 2009

In

SECOND
APPEAL No. 206 of 2009

For
Approval and Signature:

HONOURABLE
MR.JUSTICE M.R. SHAH

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1

Whether

Reporters of Local Papers may be allowed to see the judgment ?

2

To

be referred to the Reporter or not ?

3

Whether

their Lordships wish to see the fair copy of the judgment ?

4

Whether

this case involves a substantial question of law as to the interpretation of the constitution of India, 1950 or any order made thereunder ?

5

Whether

it is to be circulated to the civil judge ?

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CHANDRAKANT

M PARMAR - Appellant(s)

Versus

HANSABEN

@ HINABEN C PARMAR D/O CHAMPAKLAL M PARMAR - Defendant(s)

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Appearance :

MR.B

K.RAJ for

Appellant(s) : 1,

MR.HIREN M MODI for Defendant(s) :

1,

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CORAM

:

HONOURABLE

MR.JUSTICE M.R. SHAH

Date
: 18/03/2010

ORAL
JUDGMENT

1. Present Second Appeal under Section 100 of Code of Civil Procedure has been preferred by the appellant husband challenging the judgment and order passed by the Courts below refusing to grant decree of divorce.

2. Appellant herein original plaintiff instituted Hindu Marriage Petition No.160 of 2003 against the respondent wife for getting decree of divorce under Section 13 of the Hindu Marriage Act. It was contended on behalf of the plaintiff that respondent wife has deserted him and as such there was cruelty by wife. On appreciation on evidence, learned Trial Court disbelieved the case of the plaintiff husband and held that due to cruelty by plaintiff - husband, respondent wife was compelled to leave house of the plaintiff and compelled to stay with her parents. So far as the case on behalf of the plaintiff husband that there was fraud played by his in laws to the extent that wife was already suffering from eye disease which was not disclosed is concerned, same came to be disbelieved by the learned Trial Court on appreciation of evidence by holding that disease was developed after marriage. Being aggrieved and dissatisfied with the judgment and order passed by the learned Trial Court in dismissing the Suit, appellant husband preferred Regular Civil Appeal No.58 of 2007 before the learned Appellate Court I.e. District Court, Nadiad which came to be heard by learned Presiding Officer, Fast Track Court No.2, Nadiad who vide judgment and order dismissed the said appeal confirming the judgment and decree passed by the learned Trial Court.

3. Mr.B.K.Raj, learned Advocate appearing on behalf of the appellant husband has submitted that both the Courts below have materially erred in not decreeing the Suit and granting decree of divorce in favour of appellant husband. It is submitted that as observed and held by the Hon'ble Supreme

Court in the case of Naveen Kohil v/s. Neelu Kohli reported in AIR 2006 SC 1675 as well as in the case of Satish Sitole v/s. Ganga reported in AIR 2008 SC 3093, in all cases where there is irretrievable breakdown of marriage, the Court is bound to grant divorce. Therefore, it is submitted that in the facts and circumstances of the case when there is breakdown of marriage, appellant husband is entitled to divorce. Therefore, both the Courts below ought to have granted decree of divorce. No other submissions have been made.

4. Having heard Mr.B.K.Raj, learned Advocate appearing on behalf of the appellant husband and Mr.Modi, learned Advocate appearing on behalf of the respondent wife original defendant and having considered judgment and order passed by both the Courts below, it appears that both the Court below have not committed any error in dismissing the Suit. On appreciation of evidence, learned Trial Court has held that wife was compelled to leave house of the husband and was compelled to stay with her parents and that eye disease has been developed after marriage and there was no fraud played by in laws and on aforesaid findings, learned Trial Court dismissed the Suit which came to be confirmed by the learned Appellate Court which is not required to be interfered with by this Court in exercise of powers under section 100 of Code of Civil Procedure. As such no substantial question of law arise for determination of this Court in present Second Appeal.

5. So far as decision of the Hon'ble Supreme Court relied upon by learned Advocate appearing for the appellant husband referred to herein above, it is to be noted that Hon'ble Supreme Court has exercised powers under Article 142 of the Constitution of India and granted decree of divorce in the facts and circumstances of those cases. As such there is no absolute proposition of law laid down by the Hon'ble Supreme Court in the aforesaid decisions that in all cases where it is found that there breakdown of marriage, decree of divorce must follow. Decree of divorce is required to be granted only on the ground mentioned in Section 13 of Hindu Marriage Act and on other grounds no decree of divorce can be granted. If any ground mentioned in Section 13 of the Hindu Marriage Act is satisfied then and then only decree of divorce can be passed.

6. In view of above, there is no substance in the present Second Appeal, which deserves to be dismissed and accordingly it is dismissed.

7. In view of dismissal of Second Appeal, no order in Civil Application.

[M.R.Shah,J.] satish